

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

CIVIL REVISION NO. 439 OF 2021

Moktar Ahmed

...Petitioner

-Versus-

Roshida Begum and others

...Opposite Parties

Mr. Mohammad Rezaul Karim with
Mr. Md. Mizanul Haque, Advocates

...for the petitioner

Mrs. Nashreen Siddiqua with
Mr. Md. Juwel Azad, Advocates

...for the opposite parties

Date of hearing: 12.10.2023, 15.10.2023, 16.10.2023

Date of Judgment: 18.10.2023

A.K.M. Rabiul Hassan, J:

This Rule is directed against the judgment and order dated 19.08.2020 passed by the learned District Judge, Cox's Bazar, in Miscellaneous Appeal No. 44 of 2019 dismissing the appeal and thereby affirming the order dated 09.10.2019 passed by the learned Joint District Judge, 1st Court, Cox's Bazar in Other Suit No. 432 of 2018 allowing the plaintiff respondents' application under Order 39 rule 1 and 2 read with section 151 of the Code of Civil Procedure and granting temporary injunction restraining the payment of compensation money of the Award No. 103 of L.A. Case No. 4/2016-2017 in connection with suit Schedule-A property.

At the time of issuance of the rule, this court was pleased to stay the operation of the impugned judgment and order dated 19.08.2020 passed by the learned District Judge, Cox's Bazar in Miscellaneous Appeal No.44 of 2019 for a period of 6(six) months from the date and thereafter, on 20.06.2022 the said order of stay was extended till disposal of the rule.

For disposal of this rule, the relevant facts may be briefly be stated as follows:

The present opposite parties as plaintiffs filed an Other Suit No.432 of 2018 before the learned Joint District Judge, 1st Court, Cox's Bazar impleading the present petitioner as defendant No. 2 along with others for declaration of title of the suit land as mentioned in schedule-A of the plaint and also for a declaration that the judgment and decree dated 03.10.2021 (decree signed on 09.10.2012) passed by the Joint District Judge, 1st Court, Cox's Bazar in Other Suit No. 106 of 2011 and the registered Deed of Gift No. 656 dated 23.03.1988 in the name of predecessor of the plaintiffs is false, frivolous, collusive as well as null and void. At the time of filing the aforesaid suit, the plaintiffs-opposite parties filed an application under Order 39 rule 1 and 2 read with section 151 of the Code of Civil Procedure and prayed for an order of temporary injunction against the defendant Nos.1-25 to restrain them from withdrawing the compensation money awarded in Award No. 103 of L.A. Case No. 4 of 2016-2017 in connection with

the suit schedule-A land. On 29.11.2018 the trial court issued show cause notice upon the defendants and further directed the parties to maintain the status quo in the meantime. Thereafter, defendant No. 2 appeared in the suit and filed a written objection against the application for temporary injunction denying the material averments made in the application. Subsequently, the trial court upon the hearing of the application as well as the written objection filed by the parties vide its judgment and order dated 09.10.2019 allowed the application for temporary injunction restraining the defendant Nos.2, 17, 19 and 20 from withdrawing the compensation money awarded in Award No. 103 of LA Case No. 4 of 2016-2017 in connection with the suit schedule-A land. The trial court was also pleased to issue a show cause upon the Land Acquisition Officer of Cox'sbazar along with the defendant Nos.1 & 2 why legal action should not be taken against them for violating the Court's order dated 29.11.2018 for maintaining the status quo. Being aggrieved by the aforesaid order of injunction, defendant No. 2 as an appellant preferred Miscellaneous Appeal No. 44 of 2019 before the learned District Judge, Cox's Bazar. Upon hearing both sides, the appellate court was pleased to disallow the appeal vide its judgment and order dated 19.08.2020 and thereby affirmed the judgment and order of injunction dated 09.10.2019 passed by the trial court in Other Suit No.432 of 2018. Being aggrieved, the defendant No.2 – appellant herein as petitioner

preferred this revisional application before this court under Section 115(1) of the Code of Civil Procedure and obtained the instant Rule and stay.

Mr. Mohammad Rezaul Karim, the learned Advocate appeared for the petitioner to support the rule and submit that both the courts below were not justified in allowing the application for temporary injunction. Despite having no *prima facie* arguable case in favour of the plaintiffs-opposite parties both the courts below allowed the application for a temporary injunction which is not tenable in the eye of law. He further submits that the plaintiffs' suit is barred under Section 47 of the Acquisition and Requisition of Immovable Property Act, 2017 (in brief 'the Act 2017') because no Court shall entertain any suit or application against any order passed or any action taken under this Act, and no injunction shall be granted by any Court in respect of any action taken or to be taken in pursuance of any power conferred by or under this Act. In support of his contentions, he cited decisions in the case of *Rajdhani Unnayan Kartripakha vs. Eunus Ali and others* reported in 18BLC1, and another case of *Rajdhani Unnayan Kartripakha vs. Abdul Jakir and others* reported in 58 DLR (AD) 139 and also in the case of *Dr. Abdur Rahman and others vs. Chairman RAJUK and others* reported in 58 DLR 103. In reliance upon those decisions, he next submits that no court shall entertain any

suit or application against any order passed or action taken under the Act of 2017.

He further submits that the Act 2017 is a special law wherein a special procedure has been laid down and if any party has been aggrieved by the acquisition proceeding, there are special forum for preferring an appeal/application for addressing their grievance regarding the L.A. proceeding action to be taken under this Act. Therefore, the aforesaid suit filed by the plaintiffs-opposite parties is not maintainable and there is no scope to grant an injunction restraining the defendants to withdraw the compensation money from the Award No. 103 of LA Case No. 4 of 2016-2017. The application for temporary injunction filed by the plaintiffs in the aforesaid suit is not maintainable without recasting the appropriate procedure to the proper authority as laid down in the Act of 2017. He finally submits that both the courts below failing to appreciate the facts of the cases as well as the prima facie arguable case arbitrarily allowed the application for a temporary injunction, which is not tenable in the eye of law and, as such, the rule issued upon the opposite parties is liable to be made absolute.

As against this, Mrs. Nashreen Siddique, the learned Advocate for the opposite parties submits that the findings and observation arrived at by both the courts below are correct and proper as well as based on materials on record. She further submits that the balance of

convenience and inconvenience as to granting a temporary injunction is in favour of the plaintiffs-opposite parties who have a *prima facie* and arguable case and, as such, the trial court rightly allowed the application for temporary injunction. If the order of injunction restraining the defendants from withdrawing compensation money awarded in Award No. 103 of LA Case No. 4 of 2016-2017 in connection with the suit schedule-A land would not be maintained, the very suit of the plaintiffs will be frustrated. She next submits that the temporary injunction in respect of the withdrawal of compensation money for the acquisition of land will not cause any suffering to either of the parties and, as such, the concurrent findings of the courts below are liable to be affirmed and the instant rule is liable to be discharged. In support of her contentions, she cited the decision in the case of *Serajul Islam and Others vs Md. Humayun Kabir and Others* reported in 3 BLC (AD) 183.

Heard the learned Advocates of both sides and perused the revisional application along with the impugned order thoroughly.

Upon perusal of the records, it appears that the plaintiffs of the instant suit herein the opposite parties were not made parties in Other Suit No. 106 of 2011 which was filed by the present petitioner and others as plaintiffs regarding the selfsame suit land described to the schedule of the instant suit. The trial court also found that the present plaintiffs ought to have impleaded as a party in the Other Suit No. 106

of 2011 but the said suit was disposed of without the presence of the present plaintiffs of the instant suit on the basis of *solenama*. The suit Khaitan No. 191 from which L.A. Case No.4 of 2016-2017 had been started and based on the *solenama* decree passed in Other Suit No. 106 of 2011 the present petitioner i.e. defendant No. 2 along with defendant No. 1 are trying to withdraw the compensation awarded money of L.A. Case No. 4 of 2016-2017. During the existence of the status quo granted by the trial court in Other Suit No. 432 of 2018 in connivance with the concerned officials of the Land Acquisition Office, the present petitioner very illegally had managed to withdraw some portions of the compensation money and therefore, the trial court while passing the order of temporary injunction also issued a show cause notice upon the concerned officials i.e. defendant Nos. 24 and 25 who allowed the defendant Nos. 1 and 2 to withdraw the compensation awarded money from the aforesaid L.A. Case.

It further appears that the suit land measuring an area of 74 decimals in R.S Khatian No. 1216 belonged to Bodiur Rahman who died leaving 4(four) sons and 4 (four) daughters and thereafter, MRR Khatian No. 1289 and B.S. Khatian No. 1931 have been finally prepared and published in the name of heirs of Badiur Rahman. It is also admitted that the plaintiffs are the successors of Badiur Rahman and the defendant Nos. 17, 19, and 20 are the successors of Shafiq Ahmed who was the brother of Nur Ahmed and defendant No. 2 was

also the son of Shafiq Ahmed who is also brother of Nur Ahmed. It also transpires that defendant No.2 Mr. Mokter Ahmed and one Mr. Momtaz Ahmed who is the son of Nur Ahmed jointly had filed an Other Suit No. 106 of 2011 before the 1st Joint District Judge, Chattogram and thereafter obtained a sole decree wherein the plaintiffs of the Other Suit No.432 of 2018 herein the opposite parties ought to have been impleaded as a party and without impleading them in the Other Suit No. 106 of 2011, the present defendant No. 2 herein as petitioner obtained the sole decree in the aforesaid suit and upon which he claimed the present suit land.

Both the courts below concurrently finding *prima facie* case in favour of the plaintiffs and considering the materials facts were pleased to grant an order of temporary injunction restraining the defendant No.2, 17, 19 and 20 from withdrawing the compensation money of the Award No. 103 in L.A. Case No. 4 of 2016-2017. It is admitted by the parties that the suit land already attracted in L.A. Case No. 4 of 2016-2017. The present petitioner mainly pointed out the legal submission that as per Section 47 of the Acquisition and Requisition of Immoveable Property Act 2017, no suit can be filed before any court of law regarding the L.A. Case initiated under the said Act. For clear understanding, the said Section 47 of the said Act is quoted below:

“আপাতত বলবৎ অন্য কোনো আইনে যাহা কিছুই থাকুক না কেন, এই আইন বা তদধীন প্রণীত বিধির অধীন প্রদত্ত কোন আদেশ বা গৃহীত কোন ব্যবস্থার বিরুদ্ধে, এই আইনের অধীন কোনো ব্যবস্থা গ্রহণ ব্যতীত, অন্য কোন আদালতে কোন প্রকার মামলা দায়ের বা আরজি পেশ করা যাইবে না এবং কোন আদালত উক্তরূপ কোন আদেশ বা ব্যবস্থা সম্পর্কে কোন প্রকার আদেশ বা নিষেধাজ্ঞা জারি করিতে পারিবে না”

Upon perusal of the aforesaid section, this court's view is that the plaintiffs herein opposite parties did not challenge any action taken under the Act 2017 in the aforesaid suit rather they filed a suit for declaration of the suit land and also for a declaration that the judgment and decree passed in the Other Suit No. 106 of 2011 is not binding upon them and the alleged deed of gift No. 656 dated 23.03.1988 is false, forged, collusive and created by fraudulently. In either manner, the plaintiffs herein opposite parties did not challenge the acquisition process of L.A. Case No. 4 of 2016-2017.

It further appears that irreparable loss and injury will occur if the defendants are allowed to withdraw the compensation money from Award No. 103 in L.A. Case No. 4 of 2016 -2017 before disposal of the aforesaid suit i.e. Other Suit No. 432 of 2018. Herein, both the courts below only halted the compensation money nothing more than that and the trial court did not touch the process of acquisition of land under the said L.A. Case No.4 of 2016 -2017 in either manner.

The learned Advocate for the petitioner also addressed Section 18 of the Acquisition and Requisition of the Immoveable Property

Act, 2017 to this court. For a clear understanding of the said Section 18 of the said Act is quoted below:

“এই আইনের অধীন কোনো স্থাবর সম্পত্তি অধিগ্রহণের কারণে কোনো ব্যক্তিকে প্রাপ্য অর্থের অতিরিক্ত ক্ষতিপূরণ প্রদান করা হইলে অথবা প্রকৃত মালিক ব্যতীত অন্য ব্যক্তিকে ক্ষতিপূরণ প্রদান করা হইলে উক্ত অর্থ সরকারি দাবি হিসাবে পুনরুদ্ধার করিতে হইবে”

On perusal of Section 18 of the above Act, it transpires that when any compensation paid is in excess of the amount payable or when any compensation is paid to a person other than the rightful owner, the amount of such excess or wrong payment shall be recoverable as the public demand. In the present circumstances, if the compensation money would be given to defendant No. 2 or any other defendants based on the aforesaid L.A. Case, a multiplicity of suits may arise in the near future. Therefore, at this stage, it would not be any harm to either party if the court halted the compensation money for the ends of justice till to disposal of the Other Suit No. 432 of 2018.

It is a settled principle by our Apex Court that the concurrent finding of facts of the appellate court below as well as the trial court is binding upon the High Court Division unless the same is perverse or suffers from misconstruction of material documents or non-consideration of material evidence on record or unless that finding is shown it should be based on for no evidence. Herein both the courts below concurrently found that in considering the facts of the aforesaid

suit, there is a *prima facie* case of the plaintiffs, and the balance of convenience and inconvenience lies in favour of the plaintiffs and if the injunction would be passed against the defendants, no detriment to have been occurred to the defendants at this stage.

Having regard to the facts and circumstances of the case and the reasons stated above, I do not find any substance in this Rule.

As a result, the Rule is discharged.

The trial court is hereby directed to dispose of the Other Suit No.435 of 2018 expeditiously from receipt of a copy of this judgment without giving any unnecessary adjournment to either of the parties.

The order of stay granted earlier is hereby stand vacated.

Communicate the judgment and order to the concerned court at once.

However, there will be no order as to costs.

(A.K.M. Rabiul Hassan, J)